

been held to apply to executive officers who perform quasi-judicial functions or functions that are legislative in characters.

A. Judicial Immunity:

GENERAL RULE: Judges receive absolute immunity for their judicial actions as long as they do not act in the clear absence of all jurisdiction. This immunity generally has been extended derivatively to protect court functionaries acting at a judge's direction as well as to other persons who perform functions that are an integral part of the judicial process.

Judges are protected by an absolute immunity that was recognized at English common law. The Supreme Court adopted the immunity early in Bradley v. Fisher, 80 U.S. (13 Wall.) 335 (1871)), explaining that judges must be protected from inhibiting damages suits because they frequently must determine "[c]ontroversies involving not merely great pecuniary interests, but the liberty and character of the parties, and consequently exciting the deepest feelings *** [where] there is great conflict in the evidence and great doubt as to the law which should govern their situation" (id. at 348). This immunity is so firmly established that a clear indication in the legislative record will be required before the Court will presume that Congress intended to abolish the doctrine in enacting general remedial provisions (Pierson v. Ray, 386 U.S. 547, 554-55 (1967)).

The immunity protecting judges is broad. "A judge will not be deprived of immunity because the action he took was in error, was done maliciously, or was in excess of his